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Interpreting the Islamic Ethics of War and Peace

Sobail H. Hashmi

IF THEIR DISCOURSE on the recent Persian Gulf War is any indication, Muslims are hopelessly divided on the Islamic ethics of war and peace. One graphic indication of this division is found in the deliberations of the People's Islamic Conference, a group of Muslim activists and scholars from several countries originally convened to find a resolution for the Iran-Iraq War. During January 1991, in the weeks immediately before the Gulf War air campaign against Iraq, the conference was meeting simultaneously in Baghdad and Mecca, with the Baghdad group demonstrating sympathy with the Iraqi position and the Meccans supporting the anti-Iraq coalition. In the end, both groups issued communiques declaring their side's cause to be a "just" war, that is, *jihad*.

Muslim writers of many intellectual persuasions have long argued that Westerners hold an inaccurate, even deliberately distorted, conception of jihad. In fact, however, the idea of jihad (and the ethics of war and peace generally) has been the subject of an intense and multifaceted debate among Muslims themselves. So diffusely defined and inconsistently applied has the idea become in Islamic discourse that a number of religious opposition groups have felt compelled to differentiate their cause from competing "false" causes by naming themselves, tautologically, "Islamic" jihad.

Nevertheless, when the contemporary Islamic discourse on war and peace is studied in the context of recent historical events, including decolonization and the many conflicts in which Muslims have been involved, one can discern an emerging consensus among Muslim intellectuals on the current meaning of jihad. This consensus is by no means universal, and given the diffuse nature of religious authority in the Islamic tradition, debate on the ethics of war and peace is likely to continue. But as I hope to demonstrate, the concept of jihad in contemporary Islam is one that is still adapting to the radical changes in international relations that have occurred since the medieval theory was first elaborated. We are witnessing a period of reinterpretation and redefinition, one characterized by controversy and confusion about how the concept should be applied to contem-

porary events, but also by movement toward wider agreement on the essential points of an Islamic ethic of war and peace.

This chapter, in contrast to Bassam Tibi's presentation of the "basic religious doctrine," seeks to place the traditional legal discussion of war and peace within a broader ethical context. I begin by considering the conceptions of war and peace outlined in the two essential sources for any Islamic ethics, the Qur'an and practice (*sunna*) of the Prophet Muhammad. These sections are necessarily to some extent exegetical, for my main contention is that a comprehensive ethical framework for addressing the question of violence in human society is present in the Qur'an and elaborated by the traditions of the Prophet. In the remaining two sections, I consider issues relating to the grounds for war and the means of war as treated by the medieval Muslim jurists. But my main purpose in these sections is to consider how these two categories of moral evaluation of war are today being reinterpreted by Muslim thinkers representing a wide spectrum of cultural and ideological backgrounds. The proper conclusion, I believe, is that Islam has more in common with the Western ethical traditions considered in this volume than Tibi allows. Regarding the issue of the relationship between the Islamic tradition of jihad and the Western tradition of just war, I shall suggest that there is a growing convergence in conceptions of jihad and just war that permits a cross-cultural dialogue on the ethics of war and peace.

Much of the controversy surrounding the concept of jihad among Muslims today emerges from the tension between its legal and ethical dimensions. This tension arises because it is the juristic, and not the philosophical or ethical, literature that has historically defined Muslim discourse on war and peace. With the rise of the legalistic tradition, ethical inquiry became a narrow and secondary concern of Islamic scholarship. What we find from the medieval period are legal treatises propounding the rules of jihad and discussing related issues, but few ethical works outlining a framework of principles derived from the Qur'an and *sunna* upon which these rules could be based. With increasing political instability in the central Islamic lands beginning in the twelfth century, even legal development became moribund. The results have been particularly deleterious in the political realm. As Fazlur Rahman has observed, the stagnation of formal legal theory resulted in the increasing "secularization" of Islamic administrative law. As the dictates of the medieval Islamic law (*shari'a*) became anachronistic according to the demands of various Muslim states, jurists increasingly appealed to the notions of *maslaha mursala* (general interest) and *darura* (necessity) as justifications for various state practices.¹ The result has been the continual erosion of the ability of Islamic law to address contemporary political concerns and the reduction of Islamic ethics to the ad

hoc application of principles to specific situations in a chaotic and unsatisfactory manner. One of the central dimensions of the current controversy concerning the shari'a that is raging in the Muslim world—although it is not often phrased in this manner—is the need for a comprehensive Qur'anic ethics as a precursor to the reform of law.

CONCEPTIONS OF WAR AND PEACE IN THE QUR'AN

Ibn Khaldun observes in the *Muqadimma*, his celebrated introduction to a history of the world composed at the end of the fourteenth century, that “wars and different kinds of fighting have always occurred in the world since God created it.” War is endemic to human existence, he writes, “something natural among human beings. No nation and no race is free from it.”² Ibn Khaldun's brief comment summarizes rather well the traditional Islamic understanding of war as a universal and inevitable aspect of human existence. It is a feature of human society sanctioned, if not willed, by God Himself. The issues of war and peace thus fall within the purview of divine legislation for humanity. Islam, Muslims like to say, is a complete code of life, and given the centrality of war to human existence, the moral evaluation of war holds a significant place in Muslim ethical/legal discussion. The Islamic ethics of war and peace is therefore derived from the same general sources upon which Islamic law is based.

The first of these sources, of course, is the Qur'an, which is held by Muslims to be God's final and definitive revelation to humanity. The Qur'anic text, like other revealed scriptures, is not a systematic treatise on ethics or law. It is a discursive commentary on the actions and experiences of the Prophet Muhammad, his followers, and his opponents over the course of twenty-three years. But as the Qur'an itself argues in several verses, God's message is not limited to the time and place of its revelation; it is, rather, “a message to all the worlds” (81:27) propounding a moral code with universal applicability (39:41). From this commentary emerge broadly defined ethical principles that have been elaborated throughout Islamic history into what may be termed an Islamic conception of divine creation and man's place in it. In other words, although the Qur'an does not present a systematic ethical argument, it is possible to derive a consistent ethical system from it.³

Why is humanity prone to war? The Qur'anic answer unfolds in the course of several verses revealed at various times, the essential points of which may be summarized as follows.

First, man's fundamental nature (*fitra*) is one of moral innocence, that is, freedom from sin. In other words, there is no Islamic equivalent to the notion of “original sin.” Moreover, each individual is born with a knowledge of God's commandments, that is, with the essential aspects of righ-

teous behavior. But this moral awareness is eroded as each individual encounters the corrupting influences of human society (30:30).

Second, man's nature is to live on the earth in a state of harmony and peace with other living things. This is the ultimate import of the responsibility assigned by God to man as His viceregent (*khalifa*) on this planet (2:30). True peace (*salam*) is therefore not merely an absence of war; it is the elimination of the grounds for strife or conflict, and the resulting waste and corruption (*fasad*) they create. Peace, not war or violence, is God's true purpose for humanity (2:208).

Third, given man's capacity for wrongdoing, there will always be some who *choose* to violate their nature and transgress against God's commandments. Adam becomes fully human only when he chooses to heed Iblis's (Satan's) temptation and disobeys God. As a result of this initial act of disobedience, human beings are expelled from the Garden to dwell on earth as "enemies to each other" (2:36, 7:24). Thus, wars and the evils that stem from them, the Qur'an suggests, are the inevitable consequences of the uniquely human capacity for moral choice.

The Qur'an does not present the fall of man as irrevocable, however, for God quickly returns to Adam to support and guide him (2:37). This, according to Islamic belief, is the beginning of continuous divine revelation to humanity through a series of prophets ending with Muhammad. God's reminders of the laws imprinted upon each human consciousness through His prophets are a manifestation of His endless mercy to His creation, because all human beings are potential victims of Iblis's guile, that is, potential evildoers, and most human beings are actually quite far from God's laws (36:45–46). When people form social units, they become all the more prone to disobey God's laws through the obstinate persistence in wrongdoing caused by custom and social pressures (2:13–14, 37:69, 43:22). In this way, the individual drive for power, wealth, prestige, and all the other innumerable human goals becomes amplified. Violence is the inevitable result of the human desire for self-aggrandizement.

Fourth, each prophet encounters opposition from those (always a majority) who persist in their rebellion against God, justifying their actions through various self-delusions. One of the principal characteristics of rejection of God (*kufir*) is the inclination toward violence and oppression, encapsulated by the broad concept *zulm*. When individuals choose to reject divine guidance, either by transgressing against specific divine injunctions or by losing faith altogether, they violate (commit *zulm* against) their own nature (*fitra*). When Adam and Eve disobey the divine command in the Garden, the Qur'an relates that they cry out in their despair not that they have sinned against God, but that they have transgressed against their own souls (7:23).

When an entire society rejects God, oppression and violence become

the norm throughout the society and in relations with other societies as well. The moral anarchy that prevails when human beings abandon the higher moral code derived from faith in a supreme and just Creator, the Qur'an suggests, is fraught with potential and actual violence (2:11–12, 27, 204–5; chapter 7, *al-A'raf*, deals with this theme at length).

Fifth, peace (*salam*) is attainable only when human beings surrender to God's will and live according to God's laws. This is the condition of *islam*, the conscious decision to acknowledge in faith and conduct the presence and power of God. Because human nature is not sufficiently strong to resist the temptation to evil, it is necessary for man to establish a human agency, that is, a state, to mitigate the effects of anarchy and enforce divine law.

Sixth, because it is unlikely that individuals or societies will ever conform fully to the precepts of islam, Muslims must always be prepared to fight to preserve the Muslim faith and Muslim principles (8:60, 73).

The use of force by the Muslim community is, therefore, sanctioned by God as a necessary response to the existence of evil in the world. As the Qur'an elaborates in an early revelation, the believers are those "who, whenever tyranny afflicts them, defend themselves" (42:39). This theme of the just, God-ordained use of force for legitimate purposes is continued in several other verses. In the first verse, which explicitly permits the Muslim community to use armed force against its enemies, the Qur'an makes clear that fighting is a burden imposed upon all believers (not only Muslims) as a result of the enmity harbored by the unbelievers:

Permission [to fight] is given to those against whom war is being wrongfully waged, and verily, God has indeed the power to succor them: those who have been driven from their homelands against all right for no other reason than their saying: "Our Sustainer is God!"

For, if God had not enabled people to defend themselves against one another, monasteries and churches and synagogues and mosques—in all of which God's name is abundantly extolled—would surely have been destroyed. (22:39–40)

A subsequent verse converts this permission to fight into an injunction. The rationale given for using armed force is quite explicit: "Tumult and oppression (*fitna*) is worse than killing" (2:191).

These two verses clearly undermine the possibility of an Islamic pacifism. One verse in particular offers an implicit challenge to an ethical position based on the renunciation of all violence: "Fighting is prescribed for you, even though it be hateful to you; but it may well be that you hate something that is in fact good for you, and that you love a thing that is in fact bad for you: and God knows, whereas you do not" (2:216). There is, thus, no equivalent in the Islamic tradition of the continuing debate within Christianity of the possibility of just war. There is no analogue in Islamic texts to Aquinas's Question 40: "Are some wars permissible?" The Islamic discourse on war and peace begins from the a priori assumption that some

types of war are permissible—indeed, required by God—and that all other forms of violence are, therefore, forbidden.

In short, the Qur'an's attitude toward war and peace may be described as an idealistic realism. Human existence is characterized neither by incessant warfare nor by real peace, but by a continuous tension between the two. Societies exist forever in a precarious balance between them. The unending human challenge is *jihad fi sabil Allah* (struggle in the way of God) to mitigate the possibility of war and to strengthen the grounds for peace. The resulting human condition may bear out the truth of the angels' initial protest to God that his decision to create man will only lead to corruption and bloodshed in the world. But the Qur'anic message is, if anything, continually optimistic about the human capacity to triumph over evil (5:56; 58:19, 22). God silences the angels, after all, not by denying their prognostication, but by holding out the possibility of unforeseen potential: "I know what you know not" (2:30).

CONCEPTIONS OF WAR AND PEACE IN THE SUNNA

The second source for the Islamic ethics of war and peace is the practice (sunnah) of the Prophet Muhammad. It is impossible to comprehend the Qur'an without understanding the life of the Prophet and impossible to comprehend the life of the Prophet without understanding the Qur'an. As the Prophet's wife, 'Aisha bint Abi Bakr, is reported to have said: "His character (*khuluqhu*) was the Qur'an."⁴

Muhammad was born into a milieu characterized by internecine skirmishes (*ghazwa*) among rival tribes. These were seldom more than raids undertaken for petty plunder of a neighboring tribe's flocks. If the conflict had any "higher" purpose, it was usually collective reprisal for an injury or affront suffered by a single member of the tribe according to the prevailing *lex talionis*. Larger confrontations for higher stakes, such as the actual conquest of territory, were rare, although not unknown. The Qur'an itself alludes in the 105th chapter to a full-scale invasion of the Hijaz by an Abyssinian army a few months prior to the birth of the Prophet in 570 C.E.

Naturally, tribal loyalty was the cornerstone of this society's ethos, and virtue was often equated with martial valor. It would, however, be incorrect to view pre-Islamic Arab culture as glorifying war. Imru'l-Qays, the renowned poet of the pre-Islamic period known as the *Jabiliyya*, compares war before it is started to a young and alluring girl. But once a war begins, it quickly becomes like an old woman, hideous in appearance, unable to find any young suitor to embrace her.⁵ Moreover, as Fred Donner points out, the *ghazwa* was often viewed by its participants as a sort of ongoing game, a struggle to outwit the opponent with a minimum of bloodshed. The aim was not to vanquish the foe but to demonstrate the qualities of

courage, loyalty, and magnanimity—all components of masculine nobility included in the term *muruwwa*. Implicit in the Arab martial code were “rules of the game” that prohibited, among other things, fighting during certain months, the killing of noncombatants, and unnecessary spoliation.⁶

The conceptions of warfare existing in the Jahiliyya undoubtedly influenced the Prophet’s approach to the subject. In particular, many of the qualities of *muruwwa* were incorporated into Islam within a new ethical context, and the Prophet became the new exemplar of Arab chivalry.⁷ But it would be false to suggest, as have some Western writers, that the Prophet’s approach to war was largely an extension of the pre-Islamic Arab approach to the *ghazwa*.⁸ Such a contention is not borne out by either the Prophet’s practice or his (and the Qur’an’s) self-image as a reformer of pagan Arab values.

We can construct an outline of the Prophet’s approach to the ethics of war and peace not only by referring to the Qur’an, but also by making use of the large body of literature comprising the Prophet’s sayings and actions (hadith) and biography (*sira*) compiled between the second and fourth Islamic centuries. It is clear from these records that from an early age, Muhammad was averse to many aspects of the tribal culture in which he was born. In particular, there is no indication that he ever showed any interest in affairs of tribal honor, particularly in the *ghazwa*. Throughout the Meccan period of his prophetic mission (610–22 c.e.), he showed no inclination toward the use of force in any form, even for self-defense. On the contrary, his policy can only be described as nonviolent resistance. This policy was maintained in spite of escalating physical attacks directed at his followers and at him personally. And it was maintained in spite of growing pressure from within the Muslim ranks to respond in kind, particularly after the conversion of two men widely considered to embody traditional Arab virtues, the Prophet’s uncle Hamza and ‘Umar ibn al-Khattab. Some Qur’anic verses reflect the growing tension among the Meccan Muslims over the use of force (16:125–28, 46:35). Nevertheless, the Prophet insisted throughout this period on the virtues of patience and steadfastness in the face of their opponents’ attacks. When the persecution of the most vulnerable Muslims (former slaves and members of Mecca’s poorer families) became intense, he directed them to seek refuge in the realm of a Christian king, Abyssinia.

The Prophet’s rejection of armed struggle during the Meccan period was more than mere prudence based on the Muslims’ military weakness. It was, rather, derived from the Qur’an’s still unfolding conception that the use of force should be avoided unless it is, in just war parlance, a “last resort.” This ethical perspective is clearly outlined in the continuation of a verse (42:39) cited earlier, which defines the believers as those who defend themselves when oppressed:

The requital of evil is an evil similar to it: hence, whoever pardons [his enemy] and makes peace, his reward rests with God—for, verily, He does not love evil-doers.

Yet indeed, as for any who defend themselves after having been wronged—no blame whatever attaches to them: blame attaches but to those who oppress [other] people and behave outrageously on earth, offending against all right: for them is grievous suffering in store!

But if one is patient in adversity and forgives, this is indeed the best resolution of affairs. (42:40–43)

The main result of these early verses is not to reaffirm the pre-Islamic custom of *lex talionis* but the exact opposite: to establish the moral superiority of forgiveness over revenge. The permission of self-defense is not a call to arms; military force is not mentioned, although neither is it proscribed. Instead, it should be seen as a rejection of quietism, of abnegation of moral responsibility in the face of oppression. Active nonviolent resistance and open defiance of pagan persecution is the proper Muslim response, according to these verses, and was, in fact, the Prophet's own practice during this period. Because the Meccan period of the Prophet's mission lasted almost thirteen years, three years longer than the Medinan period, it is absolutely fundamental in the construction of an Islamic ethical system. Clearly, *jihad* in this extended period of the Prophet's life meant nonviolent resistance. For potential Muslim nonviolent activists, there are many lessons to be learned from the Prophet's decisions during these years. But, regrettably, the Meccan period has received scant attention, either from Muslim activists or from jurists, historians, and moralists.⁹

The period that has been the traditional focus of Muslim and non-Muslim concern in discussing the Islamic approach to war and peace is the decade during which the Prophet lived in Medina (622–32 C.E.). It was in Medina that the Muslims became a coherent community, and it was here that *jihad* acquired its military component.

According to the early Muslim historians, the Prophet enacted a new policy toward the Quraysh, the ruling tribe of Mecca, within a year of settling in Medina: war aimed at redressing Muslim grievances. He authorized small raids against specific pagan targets, in particular caravans proceeding along the trade route to Syria. These raids, according to many orientalist accounts, were intended specifically to be a means of collecting booty in order to alleviate the financial distress of the immigrants to Medina as well as to provide an added incentive for potential converts. The raids, it is suggested, signaled a fundamental shift in the Prophet's approach to an emphasis upon violent struggle, a shift sanctioned by increasingly belligerent Qur'anic verses of the Medinan period.

Both the early historians' accounts and the subsequent orientalist speculations have been challenged by contemporary Muslim biographers of the Prophet. Muhammad Haykal, for example, argues that the early forays were not military expeditions but only small raids intended to harass the Meccans, impress upon them the new power of the Muslims, and demonstrate the necessity for a peaceful accommodation with the Muslims.¹⁰

Both positions in the debate are obviously speculative. The uncertainty regarding any shift in the Prophet's attitude toward the employment of violence is compounded by the uncertainty regarding the actual date of the Qur'anic revelation permitting fighting (22:39). Haykal himself implies that the Qur'anic permission to fight had already been revealed before these expeditions: "This peaceful show of strength by Islam does not at all mean that Islam, at that time, forbade fighting in defense of personal life and religion, or to put a stop to persecution. . . . What it did really mean at that time, as it does today or will ever do, was to condemn any war of aggression."¹¹

Thus the Prophet's first year in Medina may rightly be characterized as a transition period in the evolution of his new policy toward the Meccans. The event that signals a clear break with pre-Islamic custom was the outcome of the third expedition, led by 'Abdallah ibn Jahsh during the prohibited month of Rajab in the second year A.H. (after *hijra*, the Prophet's flight to Medina in 622 C.E.). According to the Prophet's instructions to 'Abdallah, he and his companions were simply to reconnoiter Qurayshi positions outside Mecca. But when they came upon a Meccan caravan, the temptation to attack it overcame them. In the process they killed one man, took two others captive, and returned to Medina with the booty. Realizing that 'Abdallah had violated his instructions as well as the prohibition against fighting in that month, the Prophet rebuked 'Abdallah and refused to take any share of the booty. The incident also touched off an anti-Muslim propaganda campaign led by the Quraysh, making 'Abdallah and his compatriots even more unpopular with their fellow Muslims. It was upon this occasion that the following Qur'anic verse was revealed:

They ask you concerning fighting in the prohibited months. Answer them: "To fight therein is a grave misdeed. But to impede men from following the cause of God, to deny God, to violate the sanctity of the holy mosque, to expel its people from its precincts is with God a greater wrong than fighting in the prohibited month. Tumult and oppression are worse than slaughter." (2:217)

This verse is indicative of the continuing Qur'anic exposition of the Islamic ethics of war and its "appropriation" of certain pre-Islamic Arab values, now, in the context of the Medinan city-state, placed within an altered, more coherent moral framework. Fighting continues to be viewed as undesirable, and in some months is to be avoided altogether. In extremis, how-

ever, it is a legitimate response to injury and aggression already received at the hands of oppressors of religion. Even at this point it remains the less desirable choice and is to be exercised, the Qur'an repeatedly urges, with restraint and brevity (2:190, 193, 194; 8:61). Subsequent verses subject other pre-Islamic customs, including the ban on fighting near the Ka'aba, to the same moral evaluation (2:191).

Open warfare between the Muslims and the Quraysh was begun with the battle of Badr, fought in the month of Ramadan in 2 A.H. In the eight years following, the Prophet personally led or authorized over seventy military encounters, ranging in intensity from pitched battles in defense of Medina, to sieges, raids, and skirmishes against enemy targets. Such an astounding number of military engagements could only have had profound implications for the Prophet personally as well as for the nascent Muslim community. The preaching of Islam and the conducting of the community's day-to-day activities had to occur within a milieu characterized by outright warfare against a range of enemies: Quraysh, bedouin tribes, the Jewish tribes of Medina, and the Byzantine empire. The Muslims of this period, according to one report, "did not sleep or wake except with their weapons."¹² Qur'anic verses of the period exhorting the Prophet and his followers to fight suggest the strain that the constant threat of war must have imposed upon the community (8:24, 65).

The battle of Badr was fought when the Prophet was fifty-four years old. And although it is clear that he personally conducted several key campaigns afterward, the combined evidence of the sources indicates that he remained a reluctant warrior. On several occasions he urged the use of nonviolent means or sought an early termination of hostilities, often in the face of stiff opposition from his companions. At the same time, consonant with Qur'anic revelation, he seems to have accepted as unavoidable fighting in defense of what he perceived to be Muslim interests. The essence of his approach to war is crystallized in the following words ascribed to him: "O people! Do not wish to meet the enemy, and ask God for safety, but when you face the enemy, be patient, and remember that Paradise is under the shade of swords."¹³

THE GROUNDS FOR WAR

Ibn Khaldun continues his discussion of war in the *Muqadimma* by distinguishing four types of war. One arises from petty squabbles among rival families or neighboring tribes, another from the desire for plunder found among "savage peoples." These two types he labels "illegitimate wars." Then, reflecting the prevailing medieval approach, he divides legitimate wars into two types: jihad and wars to suppress internal rebellion.¹⁴ This latter division of legitimate wars is the logical outgrowth of the medieval

juristic bifurcation of the world into two spheres, dar al-Islam (the realm where Islamic law applied) and dar al-harb (all other lands). According to the Sunni legal schools, jihad properly speaking was war waged against unbelievers. Because all Muslims were understood to constitute a single community of believers, wars between Muslim parties were usually classed in a separate category, *fitna* (literally, a “trial” or “test”). Like Plato, who has Socrates declare that Greeks do not make war on one another,¹⁵ the Muslim jurists viewed intra-Muslim disputes as internal strife that should be resolved quickly by the ruling authorities. This approach to war among Muslims, important in medieval theory, has assumed greater significance in modern controversies about the definition of jihad.

The descriptions of jihad in the medieval texts reflect the historical context in which legal theory was elaborated. Because the medieval juristic conception of jihad provided legal justification for the rapid expansion of the Islamic empire that occurred in the decades following the Prophet’s death, its connotations are offensive rather than defensive. Relatively little consideration was given to jihad defined as “defensive struggle,” that is, war undertaken strictly to safeguard Muslim lives and property from external aggression. It was considered obvious that Muslims may wage war in self-defense, according to the Qur’anic verses cited earlier. This defensive war was *fard ‘ayn*, a moral duty of each able-bodied Muslim, male or female.

More detailed discussion of jihad comes in the context of offensive struggles aimed at expansion of Islamic hegemony, an expansion aimed ultimately at the universal propagation of Islam. In the twelfth century, Ibn Rushd (Averroes) wrote a legal treatise that deals at some length with the conditions of jihad.¹⁶ His treatise is representative of the medieval theory for two reasons. First, as one of the later medieval writers, he incorporates into his work the views of earlier scholars. Second, his treatise is typical of the methodology applied by earlier jurists in reconciling apparently conflicting verses of the Qur’an or actions of the Prophet.

Because the ultimate end of jihad is the propagation of the Islamic faith, not material gain or territorial conquest, Ibn Rushd, like other medieval writers, implicitly, if not always explicitly, separates the grounds for jihad from the grounds for war (harb or qital). Because Islam is viewed as a universal mission to all humanity, jihad is the perpetual condition that prevails between dar al-Islam and dar al-harb. Participation in the jihad to overcome dar al-harb was a *fard kifaya*, a moral obligation only for those capable of assuming it, namely able-bodied and financially secure adult males. Actual warfare, qital, arose only as the final step in a “ladder of escalation.” The first step in any contact between the Muslim state and a foreign power was an invitation to allow the peaceful preaching of Islam. This was consonant with the practice of the Prophet, who had sent letters

to the rulers of Byzantium, Iran, and Egypt for precisely this purpose. If a foreign ruler refused this invitation, he was to be offered the incorporation of his people into the Islamic realm as a protected non-Muslim community governed by its own religious laws, but obliged to pay a tax, the *jizya*, in lieu of performing military service. Only if the non-Muslims refused these conditions were there grounds for active hostilities. At this point, the Muslim ruler was not only permitted but required to wage war against them.

According to Ibn Rushd, the medieval jurists disagreed most on the question of when it was permissible to suspend jihad. The basis of the controversy was the apparent discrepancy between the Qur'an's "verses of peace" and "verses of the sword." In the eighth chapter, for example, is the following verse: "If they incline toward peace, incline you toward it, and trust in God: verily, He alone is all-hearing, all-knowing" (8:61). In the ninth chapter, however, we encounter the following commands: "And so, when the sacred months are over, slay the polytheists wherever you find them, and take them captive, and besiege them, and lie in wait for them at every conceivable place" (9:5); and

Fight against those who—despite having been given revelation before—do not believe in God nor in the last day, and do not consider forbidden that which God and His Messenger have forbidden, and do not follow the religion of truth, until they pay the *jizya* with willing hand, having been subdued. (9:29)

As Ibn Rushd observes, some jurists held the opinion that the sword verses must be read in context with the peace verses, and that the ruler (*imam*) was therefore entitled to suspend jihad whenever he deemed it appropriate. Others read the sword verses as requiring continual warfare against unbelievers (both polytheists and the recognized "peoples of the book," that is, Jews, Christians, Sabaeans, and Zoroastrians) until they had been incorporated within dar al-Islam. They invoked the interpretive principle of "abrogation" (*naskh*) to support their conclusion: because the sword verses had been revealed *after* the peace verses, the command to wage jihad against non-Muslims supersedes the permission to engage in peaceful relations.¹⁷

Thus, as Ibn Rushd's discussion makes apparent, the medieval juristic literature is characterized by fundamental disagreements on the grounds for war. But most of the legal scholars agree that the object of jihad is not the forcible conversion of unbelievers to the Islamic faith. This object would contradict several clear Qur'anic statements enjoining freedom of worship, including "Let there be no compulsion in religion; the truth stands out clearly from error" (2:256), and "If your Lord had so willed, all those who are on earth would have believed; will you then compel mankind, against their will, to believe?" (10:99). With regard to verse 9:5 (quoted above), which seems to sanction a war of mass conversion of all polytheists to Islam, most acknowledge that the full context in which the

verse occurs limits its application to the pagan Arabs who were so implacably opposed to the earliest Muslim community at Medina. The object of jihad is generally held by these writers to be the subjugation of hostile powers who refuse to permit the preaching of Islam, not forcible conversion. Once under Muslim rule, they reason, non-Muslims will be free to consider the merits of Islam.

The medieval theory of an ongoing jihad, and the bifurcation of the world into dar al-Islam and dar al-harb upon which it was predicated, became a fiction soon after it was elaborated by medieval writers. The “house of Islam” disintegrated into a number of rival states, some of whom found themselves allied with states belonging to the “house of war” in fighting their co-religionists. Nevertheless, the idea that “Islam” and the “West” represented monolithic and mutually antagonistic civilizations underlay much Muslim and European writing, particularly during the heyday of European imperialism in the eighteenth and nineteenth centuries. Shades of this viewpoint are very much apparent in our own day.

In his discussion of recent Muslim thinking on the grounds for jihad, Bassam Tibi outlines two contending approaches, the “conformist” and the “fundamentalist.” He suggests that the reinterpretation of the medieval theory of jihad by modernists (as the conformists are more commonly known) is half-hearted and that, in the end, it is the fundamentalists’ resurrection of the medieval dar al-harb/dar al-Islam distinction that best characterizes the current Muslim view of international relations generally and issues of war and peace in particular. His presentation, I think, does not adequately acknowledge the significance of modernist challenges to the medieval theory or real differences in how fundamentalists employ medieval terms like dar al-harb.

It is important to recognize that modernists as well as fundamentalists believe that Islamic thought must be revived by returning to the “true sources,” that is, the Qur’an and sunna. This approach leads the modernists to challenge many aspects of medieval legal doctrine regarding war and peace, beginning with the division of the world into separate spheres. As they point out, this rigid bifurcation is nowhere to be found in the Qur’an or the traditions of the Prophet. Although the Qur’an’s division of mankind into believers and unbelievers lends support for such a view, modernist writers argue that the Qur’anic verses cannot be interpreted to suggest a perpetual state of war between the two, nor any territoriality to the “house of Islam,” when these verses are taken in the full context of the Qur’anic message. In one of the leading modernist expositions of Islamic international law, Mohammad Talaat al-Ghunaimi dismisses the dar al-Islam/dar al-harb distinction as an idea introduced by certain medieval legal thinkers in response to their own historical circumstances, but having no basis in Islamic ethics.¹⁸

Having undermined the medieval dichotomy, the modernists proceed to challenge the medieval conception of “aggressive jihad.” Again, their method is to return to the “sources.” When the Qur’anic verses and the Prophet’s traditions on warfare are studied in their full context, they argue, jihad can only be a war of self-defense. As the influential Egyptian scholar Muhammad Abu Zahra writes, “War is not justified . . . to impose Islam as a religion on unbelievers or to support a particular social regime. The Prophet Muhammad fought only to repulse aggression.”¹⁹

Turning to the fundamentalists, we do find a much more assertive, militant, violent interpretation of jihad. This is not surprising, given that most of the writers labeled “fundamentalist” are involved in revolutionary movements seeking to overthrow entrenched and militarily superior nationalist regimes. Yet if we probe even superficially beneath the rhetoric of the fundamentalists’ polemics, we find real differences between their ideas and those of medieval legal theory, and real similarities uniting them with the modernists. It is true that there remains a large gap between the modernists and the most militant fundamentalist groups operating in the Muslim world today, but these groups, despite the media attention they receive, represent only the fringes of Islamic activism.

First, with respect to the fundamentalists’ use of the expressions *dar al-Islam* and *dar al-harb*, there is a substantial difference between the notion of the new *Jahiliyya*, as it appears in the works of such writers as Hasan al-Banna and Sayyid Qutb, and medieval conceptions of *dar al-harb*. *Jahiliyya* is used by the fundamentalists as a sweeping condemnation of cultural norms and political corruption that has only the vaguest connection with medieval ideas. Fundamentalist writers do argue that the origin of this anti-Islamic culture is Western, but their polemics are equally, if not mainly, focused on allegedly hypocritical Muslim rulers and other “Westernized” elites who actively propagate *jahili* culture in their own societies. Thus, the fundamentalist attack on Western values is not a resurrection of the medieval dichotomy between Islam and the rest of humanity. It is, I believe, the Muslim version of the attack on “neoimperialism” that characterizes many Third World polemics against the current international order. The *dar al-Islam/dar al-harb* dichotomy developed by medieval jurists was predicated on the moral and military superiority of Islamic civilization. When twentieth-century writers such as al-Banna, Qutb, Maududi, and Khomeini depict international politics as a struggle between Islam and the West, they are governed more by their understanding of the history of European colonialism and American policies in the Muslim world than by medieval notions of *dar al-harb*. They are motivated by faith in the moral superiority of Islam, but also by a painful awareness of the technological and military weakness of the Muslim world compared to the West.

Second, regarding the use of jihad by fundamentalist writers, there is again a substantial difference between recent and medieval works. The thrust of the medieval jihad is outward into the *dar al-harb*. Central to medieval theory is the issue of right authority. A war is jihad, that is, lawful, only when it is declared by a legitimate ruler, the imam, who bears responsibility for assessing the war's right intent and right conduct. Sunni writers discuss at considerable length the characteristics of a legitimate ruler, but devote almost no attention to illegitimate rulers. The medieval political theory favors acquiescing to any ruler who can maintain order and enforce the law, regardless of the means he has used to assume power. Thus, on the topic of political rebellion, the medieval theorists are generally quite conservative. Rebellion threatened the established order of *dar al-Islam* and the resulting anarchy undermined the religious life of the community. As a result, there is a strong bias against any right of rebellion and an emphasis on the need to speedily reincorporate rebels into the body politic.

With the emergence of postcolonial Muslim states, political legitimacy and the rights of the people in the face of oppressive regimes have emerged as central issues in Islamic discourse. These issues figure prominently, of course, in all fundamentalist literature.

Fundamentalists view themselves as a vanguard of the righteous, preparing the way for the elimination of jahili values from their societies and the establishment of a just "Islamic" order. The details of this order remain vague in the fundamentalist tracts. What is clear from these works is the view, supported by experience, that the secular, nationalist regimes ruling most Muslim countries today, backed by their Western supporters, will not willingly cede power, even if the majority of the population does not support them. They will maintain power by any means, including the violent repression of dissent. In other words, it is argued that these regimes have declared war on Islam within their countries, and that it is incumbent upon all true believers to respond by whatever means are necessary, including violence, to overthrow them. The fundamentalist writings are therefore focused on combating the social ills and international oppression that they believe faces the Muslim community (*umma*) everywhere. Jihad is for the fundamentalists an instrument for the realization of political and social justice in their own societies, a powerful tool for internal reform and one required by the Qur'an's command that Muslims "enjoin the right and forbid the wrong" (3:104). The thrust of the modern jihad is thus very much inward. Warfare on the international level is considered only to the extent that Western governments are viewed as archenemies who impose corrupt and authoritarian regimes upon Muslims. Jihad as an instrument for the imposition of Islamic rule in non-Muslim states today hardly figures in fundamentalist works. Such views would be absurd given the fundamentalist position, which they share with many other Muslim writ-

ers, that most of the Muslim countries themselves do not at present have Islamic governments.

One area in which modernists and fundamentalists are tending to converge is upon the argument that jihad is an instrument for enforcing human rights. For example, the Iranian revolutionary leader Ayatollah Murtaza Mutahhari argues that “the most sacred form of jihad and war is that which is fought in defense of humanity and of human rights.”²⁰ Similarly, the Indian/Pakistani scholar Maulana Abu'l-A'la Maududi writes that jihad is obligatory for Muslims when hostile forces threaten their human rights, which in his analysis includes forcibly evicting them from their homes, tampering with their social order, and obstructing religious life.²¹

To some extent these arguments are a response to Western writings on the international protection of human rights. But it is interesting to note that whereas there is continuing debate in the West on the legality of humanitarian intervention against sovereign states, continuing ambivalence toward the territorial state in Islamic thought lends weight to the argument in favor of such intervention among a broad range of Muslim writers.²²

THE CONDUCT OF WAR

Because the goal of jihad is the call to Islam, not territorial conquest or plunder, the right conduct of Muslim armies has traditionally been an important concern within Islam. The Qur'an provides the basis for *ius in bello* considerations: “And fight in God's cause against those who wage war against you, but do not transgress limits, for God loves not the transgressors” (2:190). The “limits” are enumerated in the practice of the Prophet and the first four caliphs. According to authoritative traditions, whenever the Prophet sent out a military force, he would instruct its commander to adhere to certain restraints. The Prophet's immediate successors continued this practice, as is indicated by the “ten commands” of the first caliph, Abu Bakr:

Do not act treacherously; do not act disloyally; do not act neglectfully. Do not mutilate; do not kill little children or old men, or women; do not cut off the heads of the palm-trees or burn them; do not cut down the fruit trees; do not slaughter a sheep or a cow or a camel, except for food. You will pass by people who devote their lives in cloisters; leave them and their devotions alone. You will come upon people who bring you platters in which are various sorts of food; if you eat any of it, mention the name of God over it.²³

Thus, the Qur'an and the actions of the Prophet and his successors established the principles of discrimination and proportionality of means. But as Ibn Rushd's treatise makes clear, the elaboration of these broad principles created serious divisions among medieval jurists.

The legal treatises generally focus on a number of issues raised by the Qur'an itself: the treatment of prisoners, both combatants and noncombatants (47:4, 8:67); the granting of quarter or safe passage (*aman*) to residents of dar al-harb (9:6); and the division of booty (8:41). In addition, the jurists also dealt with the traditional concerns of *ius in bello*: the definition and protection of noncombatants and restrictions on certain types of weapon.

The legal discussions address three issues: Who is subject to damage in war? What types of damage may be inflicted upon persons? What types of damage may be inflicted upon their property? Underlying the differing opinions on these issues once again are the apparent contradictions between the peace verses and the sword verses. The jurists who contend that the sword verses provide a general rule superseding earlier revelation argue that belief is the decisive factor in establishing immunity from attack. Since verse 9:5, in their view, commands Muslims to fight all polytheists, only women and children (who were specifically designated by the Prophet as immune) are prohibited targets. All able-bodied polytheist males, whether actually fighting or not, may be killed.

Other jurists, who do not consider the peace verses to have been abrogated, maintain that capacity to fight is the only appropriate consideration, and therefore include old men, women, children, peasants, slaves, and hermits among prohibited targets.²⁴ The prohibition against direct attack, however, does not establish the absolute immunity of noncombatants, because, according to most jurists, all of these persons (except for hermits) are subject to the laws pertaining to prisoners of war. They may be enslaved or ransomed by the Muslim forces.

During the fighting, Muslims are permitted to inflict damage on the property of their enemies to the extent necessary to overcome them. Most jurists do not permit the unnecessary slaughter of animals, the destruction of homes, the cutting down of fruit trees, or the use of fire.²⁵ However, the eighth-century jurist Shaybani reports that Abu Hanifa, the founder of one of the four Sunni legal schools, allowed these tactics as well as the use of catapults and flooding to defeat the enemy. These methods may be employed against an enemy target even when women, children, and old men will be killed. If the enemy uses Muslims as shields, even then the Muslim forces may attack them. The reason given by Abu Hanifa is that if Muslims stopped attacking their enemies for fear of killing noncombatants, they would not be able to fight at all, "for there is no city in the territory of war in which there is no one at all of these . . . mentioned."²⁶

Abu Hanifa's justification summarizes the medieval approach to non-combatant immunity. Muslim forces should exercise discrimination in war, but if "collateral damage" is inflicted, then the blame lies with the enemy, who made protection of noncombatants impossible. In general, the medie-

val theory views damage to the enemy as self-incurred harm. If Muslim forces violate the normal restrictions on conduct, it is because of provocation by the enemy. Yet strict reciprocity has never been established as a principle of the Islamic ethics of war: wanton disregard for humane treatment of combatants and noncombatants by the enemy does not permit Muslim armies to respond in kind.

In current Muslim discourse on war and peace, *ius in bello* issues receive very little attention. This is true despite the vast changes that have occurred in both the international law and the technology of warfare. The discussion that does occur is usually undertaken by modernists seeking to reinterpret the Qur'an and sunna so that Islamic injunctions correspond to current international practice.²⁷ Invariably these works concentrate on demonstrating the obsolescence of various aspects of medieval theory, such as the killing or enslavement of prisoners or the distribution of enemy property. More contemporary issues, such as the definition of noncombatant immunity and the use of terrorist methods by some Islamic groups, have yet to be treated systematically.

Far more relevant and interesting discussion of right conduct in war occurs in the context of specific conflicts. During the "war of the cities" toward the end of the Iran-Iraq War, for example, Mehdi Bazargan and the Liberation Movement of Iran (LMI) repeatedly protested that Khomeini was violating Islamic prohibitions against targeting civilians when he authorized missile strikes against Baghdad in retaliation for Iraq's Scud missile attacks against Teheran. In one "open letter" to Khomeini, the LMI wrote:

According to Islam, it is justifiable retribution only if we, with our own missiles, hit the commanders or senders of the Iraqi missiles rather than hitting civilian areas and killing innocent people and turning their homes and communities into ghost towns and hills of rubble, all in the name of striking military targets.²⁸

But the LMI never developed its argument. Issues raised by its criticism, such as "double effect," "reciprocity," and "proportionality of means," were never fully addressed.

More systematic discussion of just means occurred during the Persian Gulf War. In fact, *ius in bello* rather than *ius ad bellum* concerns dominated Muslim debates on the ethics of the conflict. Among the points raised by opponents of the anti-Iraq coalition's policies was that the conflict should be treated as *fitna*, that is, a dispute among Muslims. The rules concerning *fitna* developed by medieval jurists do not permit Muslims to ally themselves with non-Muslims, particularly when military decision-making is in non-Muslim hands. The prohibition was based on the belief that unbelievers would not apply the stricter code of conduct incumbent upon Muslims when fighting other Muslims. Critics of the Gulf War have argued that the conduct of the war by the coalition validates the medi-

eval jurists' concerns. The massive air bombardment of Iraq's governmental and industrial facilities, they charge, was disproportionate to the Iraqi provocation and insufficiently discriminated between military and civilian targets. Moreover, the slaughter of Iraqi troops fleeing Kuwait City on the "highway of death" directly contravened one of the central points of Islamic law, namely that the goal of all military campaigns against other Muslims should be to rehabilitate and not to annihilate the transgressing party.

The most glaring area of neglect in contemporary Islamic analyses of *ius in bello* concerns weapons of mass destruction. So far, no systematic work has been done by Muslim scholars on how nuclear, chemical, and biological weapons relate to the Islamic ethics of war. This is an astonishing fact in light of the development of nuclear technology by several Muslim countries and the repeated use of chemical weapons by Iraq. In discussing the issue with several leading Muslim specialists in international law, I have found a great deal of ambivalence on the subject. Most scholars cite the Qur'anic verse "Hence, make ready against them whatever force and war mounts you are able to muster, so that you might deter thereby the enemies of God" (8:60) as justification for developing nuclear weaponry. Muslims must acquire nuclear weapons, I have been repeatedly told, because their enemies have introduced such weapons into their arsenals. There is unanimous agreement that Muslims should think of nuclear weapons only as a deterrent and that they should be used only as a second-strike weapon. But Islamic discussion of this topic remains at a very superficial level. There is little appreciation of the logistics of nuclear deterrence and of the moral difficulties to which a deterrence strategy gives rise.

CONCLUSION

Is the Islamic jihad the same as the Western just war? The answer, of course, depends upon who is defining the concepts. But after this brief survey of the debates that have historically surrounded the Islamic approach to war and peace and the controversies that are continuing to this day, I think it is safe to conclude that even though jihad may not be identical to the just war as it has evolved in the West, the similarities between Western and Islamic thinking on war and peace are far more numerous than the differences.

Jihad, like just war, was conceived by its early theorists basically as a means to circumscribe the legitimate reasons for war to so few that peace is inevitably enhanced. Jihad, like just war, is grounded in the belief that intersocietal relations should be peaceful, not marred by constant and destructive warfare. The surest way for human beings to realize this peace is for them to obey the divine law that is imprinted on the human conscience

and therefore accessible to everyone, believers and unbelievers. According to the medieval view, Muslims are obliged to propagate this divine law, through peaceful means if possible, through violent means if necessary. No war was jihad unless it was undertaken with right intent and as a last resort, and declared by right authority. Most Muslims today disavow the duty to propagate Islam by force and limit jihad to self-defense. And finally, jihad, like just war, places strict limitations on legitimate targets during war and demands that belligerents use the least amount of force necessary to achieve the swift cessation of hostilities.

Both jihad and just war are dynamic concepts, still evolving and adapting to changing international realities. As Muslims continue to interpret the Islamic ethics of war and peace, their debates on jihad will, I believe, increasingly parallel the Western debates on just war. And as Muslims and non-Muslims continue their recently begun dialogue on the just international order, they may well find a level of agreement on the ethics of war and peace that will ultimately be reflected in a revised and more universal law of war and peace.

NOTES

1. Fazlur Rahman, "Law and Ethics in Islam," in Richard G. Hovanissian, ed., *Ethics in Islam: Ninth Giorgio Levi Della Vida Biennial Conference* (Malibu, CA: Undena Publications, 1985), 9.

2. Ibn Khaldun, *The Muqadimma: An Introduction to History*, trans. Franz Rosenthal (Princeton: Princeton University Press, 1981), 223.

3. The Qur'an argues in several places for the inner consistency of the moral code elaborated within it. See 4:82, 25:32, and 39:23. These verses are part of an extended debate contained in the Qur'an against the Meccan polytheists as well as Christians and Jews who argued that the Qur'an was Muhammad's own agglomeration of disparate scriptures and moral codes.

4. Ahmad b. 'Abdallah Abu Nu'aim al-Isfahani, *Dala'il al-Nubuwwa* (Hyderabad: Da'irat al-Ma'arif al-'Uthmaniyya, 1977), 139.

5. Cited in M. Abu Laylah, *In Pursuit of Virtue: The Moral Theology and Psychology of Ibn Hazm al-Andalusi* (London: TaHa Publishers, 1990), 51.

6. Fred Donner, "Sources of Islamic Conceptions of War," in John Kelsay and James Turner Johnson, eds., *Just War and Jihad: Historical and Theoretical Perspectives on War and Peace in Western and Islamic Traditions* (New York: Greenwood Press, 1991), 34.

7. See the valuable study by Toshihiko Izutsu, *Ethico-Religious Concepts in the Qur'an* (Montreal: McGill University Press, 1966), 74–104.

8. Montgomery Watt, for example, writes: "It was essentially from the light-hearted razzia [the corrupted form of ghazwa] that the Islamic idea and practice of the jihad or holy war developed." W. Montgomery Watt, "Islamic Conceptions of the Holy War," in Thomas Murphy, ed., *The Holy War* (Columbus: Ohio State University Press, 1976), 142.

9. There are, however, some significant modern examples of Muslim advocacy and practice of nonviolent resistance. See Ralph E. Crow, Philip Grant, and Saad E. Ibrahim, eds., *Arab Nonviolent Political Struggle in the Middle East* (Boulder, CO: Lynne Rienner Publishers, 1990).
10. Muhammad Husayn Haykal, *The Life of Muhammad*, trans. Ismail Ragi al-Faruqi (Indianapolis: North American Trust, 1976), 204.
11. Haykal, *Life of Muhammad*, 208.
12. Jalal al-Din al-Suyuti, *Asbab al-Nuzul* (Cairo: Dar al-Tahrir li'l-Tab' wa'l-Nashr, 1963), 128.
13. Imam Bukhari, *Sahih al-Bukhari*, trans. Muhammad Muhsin Khan (Beirut: Dar al-Arabia, 1985), 4: 165.
14. Ibn Khaldun, *Muqadimma*, 224.
15. Plato, *The Republic*, trans. Allan Bloom (New York: Basic Books, 1968), 150.
16. Ibn Rushd, *Bidayat al-Mujtabid*, in Rudolph Peters, ed. and trans., *Jihad in Medieval and Modern Islam* (Leiden: E. J. Brill, 1977), 9–25.
17. Ibn Rushd, *Bidayat al-Mujtabid*, 22–23.
18. Mohammad Talaat al-Ghunaimi, *The Muslim Conception of International Law and the Western Approach* (The Hague: Martinus Nijhoff, 1968), 184.
19. Muhammad Abu Zahra, *Concept of War in Islam*, trans. Muhammad al-Hady and Taha Omar (Cairo: Ministry of Waqf, 1961), 18.
20. Ayatollah Murtaza Mutahhari, “Defense: The Essence of *Jihad*,” in Mehdi Abedi and Gary Legenhausen, eds., *Jihad and Shabadat: Struggle and Martyrdom in Islam* (Houston: Institute for Research and Islamic Studies, 1986), 105.
21. Abu'l-A'la Maududi, *Jihad fi Sabil Allah* (Lahore: Idara Tarjuman al-Qur'an, 1988), 55–56.
22. For a more detailed discussion of this issue, see Sohail Hashmi, “Is There an Islamic Ethic of Humanitarian Intervention?” *Ethics and International Affairs* 7 (1993), 55–73.
23. Quoted in John Alden Williams, ed., *Themes of Islamic Civilization* (Berkeley and Los Angeles: University of California Press, 1972), 262.
24. Ibn Rushd, *Bidayat al-Mujtabid*, 16–17.
25. The prohibition against using fire in warfare was based on a tradition of the Prophet: “No one is free to punish by means of fire, save the Lord of the Fire”—that is, God. Ibn Rushd, *Bidayat al-Mujtabid*, 18.
26. Muhammad ibn al-Hasan Shaybani, *Siyar al-Kabir*, trans. Majid Khadduri, *The Islamic Law of Nations* (Baltimore: The Johns Hopkins University Press, 1966), 101–2.
27. Two important modernist discussions of the means of war are Abu Zahra, *Concept of War in Islam*, 44–68, and Muhammad Hamidullah, *The Muslim Conduct of State*, 7th ed. (Lahore: Sh. Muhammad Ashraf, 1977), 202–54.
28. Liberation Movement of Iran, “A Warning Concerning the Continuation of the Destructive War” (Houston, TX: Maktab, 1988), 14.